

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on January 10, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On January 10, 2024, a complaint was received by this Agency submitted by C.C.C. (hereinafter, the complainant) against B.B.B. for not having duly attended to their right of access to their personal data.

The complainant has provided an email received from B.B.B. on July 19, 2018, apparently in response to a request from them, in which they are informed that there is a payment order to be delivered to them, and they are asked when it would be convenient for them to collect it.

The complainant has submitted a thread of emails, initiated on September 23, 2022, in which, referring to the aforementioned email from July 19, 2018, they ask B.B.B. if they can reclaim the amounts that were already managed. The exchanged responses are also attached. Again, the complainant inquired about the matter on April 24, 2023.

On May 15, 2023, the complainant sent an email addressed to B.B.B. at the address ***ADDRESS.1 requesting access to their personal data and "(...) that a copy of my complete file be provided to me, containing my personal data and including all documents and information related to the legal services referred to in this case that have been provided to me by your office."

On May 18, 2023, B.B.B. replied indicating that they had not received any news because the Court had not provided the submitted documents requesting new asset investigations. They also explained that "(...) if you wish to exercise your right of access to your personal data, as indicated in the Legal Note at the bottom of the emails I send, you must send me a 'copy of an official document' that identifies you.

If what you want is a copy of your judicial file:

If you want me to send it to you by email, you must again send me a copy of an official document that identifies you.

Or if you prefer, you can collect a paper copy at the office, by prior appointment (...)

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Under no circumstances, due to the policy of the office, is a copy of the complaint document provided, as it is an intellectual creation of the lawyer. If you come in person, there is no problem in displaying it and discussing it together if you wish."

The complainant responded expressing how they would like to receive the response to the requested exercise, according to their rights attention procedure, and asking for confirmation from B.B.B. as to whether it was necessary to send the identification document, as the complainant understood that it should not be necessary, not believing that there could be reasonable doubts about their identity to confirm it again.

The complainant states that they have not received any response. Therefore, on September 20, 2023, they sent a new reminder email regarding the request, again without a response.

SECOND: This Agency has verified that the constitution of the entity ACCIÓN JURÍDICA ABOGADOS, SOCIEDAD CIVIL PROFESIONAL is published in the Official Bulletin of the Mercantile Registry, in which B.B.B. is listed as ***POSITION.1.

Therefore, it is considered that ACCIÓN JURÍDICA ABOGADOS, SOCIEDAD CIVIL PROFESIONAL is the party being complained against in this file.

THIRD: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the party being complained against, so that they could analyze it and inform this Agency within one month of the

actions taken to comply with the requirements set forth in the data protection regulations, without any response being recorded in this Agency.

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on April 10, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the party being complained against a hearing procedure, so that within ten working days they could present any allegations they deemed appropriate.

The party being complained against states that the company was established in 2018, so it is impossible for the complainant to have contracted their services.

The party being complained against indicates the email addresses they have, with accionjca@accionjca.com being the one enabled to exercise rights, as they are informed in each and every communication sent to them.

"(...) In any case, no emails have been received at any of the operational addresses that ACCIÓN JURÍDICA ABOGADOS, S.C.P. has from C.C.C..

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THIRD.- In any case, after consulting the files of this entity, it has been verified that, as indicated in the First allegation, C.C.C. has not been a client, nor a supplier, nor a third party, therefore ACCIÓN JURÍDICA ABOGADOS, S.C.P. does not possess any data of the claimant."

FIFTH: After examining the document submitted by the responding party, it is forwarded to the claimant, so that, within a period of ten working days, they may formulate any allegations they deem appropriate, failing to submit allegations within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, requiring a response to this Agency within one month and to demonstrate that they

had provided the claimant with the appropriate response.

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The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on April 10, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible form, using clear and plain language.

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Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the “data or processing activities to which the request refers.” The right will

be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the data subject chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

In this case, from the examination of the documentation provided, it appears that this Agency has erroneously considered the entity ACCIÓN JURÍDICA ABOGADOS, SOCIEDAD CIVIL PROFESIONAL as the party being claimed against.

In this regard, it should be noted that the complaint received by this Agency is formally directed by the complainant against the lawyer B.B.B. Although possible links have been detected between this lawyer and the firm ACCIÓN JURÍDICA ABOGADOS, SOCIEDAD CIVIL PROFESIONAL, it is true that the complainant claims to have been a client of the lawyer "since 2017," whereas the firm ACCIÓN JURÍDICA ABOGADOS, SOCIEDAD CIVIL PROFESIONAL was founded in 2018. Additionally, in the emails provided by the complainant, related to the exercise of the right of access between client and lawyer, there is no mention by the latter of the aforementioned firm. Nor does the email address used by the professional belong to a domain that could be inferred to belong to the firm.

Consequently, it is inferred that this Agency has considered as the data controller someone who is not actually responsible for the factors related in the previous paragraph. All of this is without prejudice to the fact that, if it is possible to determine the actual data controller, the appropriate procedure for exercising the right of access against them will be processed.

Therefore, it is appropriate to archive this procedure.

The complaint submitted by the complainant will be analyzed and evaluated again, proceeding with the corresponding processing, without prejudging the outcome of its resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE this procedure.

SECOND: TO NOTIFY this resolution to C.C.C. and to ACCIÓN JURÍDICA ABOGADOS, S.C.P.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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